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File No.: EXP202206214

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On May 31, 2022, Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The reasons on which the complaint is based are as follows:

The complainant files a complaint against the responsible party of the website todo-memes.com, where several memes have been published by anonymous users that use the image and name of the affected party. The URLs to access several of these images are provided. In general, all of them are pornographic images in which the face of the affected party and her brother have been inserted.

The complainant states that she has attempted to contact the service provider through the only contact method apparently available, a form, without success. Therefore, she contacted Cloudflare, which appears in WHOIS as the hosting service provider. This entity informed her of which entity actually provides the hosting service for the site: FRANTECH, an entity whose website is a .ca domain (Canada), although the location of its main establishment is unclear (it seems to be in the USA, where most of its data centers are located, although it also has one in Luxembourg). In any case, the affected party states that after contacting them, they have not taken any action (she provides a printout of all communications exchanged, the last dated May 27, 2022). Furthermore, she claims that they have also contacted the domain registrar (NAMECHEAP), also without success.

The complainant indicates that she has contacted Google to achieve the de-indexing of the images. It is verified that the search engine continues to index some of the mentioned images.

Finally, she adds that before coming to the AEPD, she contacted the OSI, which could not provide her with any assistance.

The following URLs to access these images are provided:

- ***URL.1
- ***URL.2
- ***URL.3
- ***URL.4
- ***URL.5

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- ***URL.6
- ***URL.7
- ***URL.8
- ***URL.9

SECOND: On June 1, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

The claims of the complainant and the request for information regarding the session IP addresses during the creation of the memes were communicated to the responsible party of the website <https://todo-memes.com> through the contact form provided by the website, as in the case presented by the complainant, no response was obtained nor were the requested contents removed.

The same communication was made through the anonymized email address of the registrant provided by the Internet domain registrar, resulting in the removal of the content from all the links indicated in the complaint.

However, the service provider does not provide any information to this Agency regarding the authorship of the publications or the IP addresses from which they were published.

During the present proceedings, new content related to the complainant was found published on the same website at the following Internet addresses:

1. ***URL.10 published on May 16, 2022
2. ***URL.11 published on April 11, 2022
3. ***URL.12 published on April 27, 2022
4. ***URL.13
5. ***URL.14 published on May 16, 2022
6. ***URL.15 published on April 11, 2022

New requests were made following the previous procedure, dated June 28, 2022, and September 12, 2022, resulting in the removal of publications related to the first four Internet addresses only.

A new request for the removal of publications at the addresses was made on February 15, 2023, using the previous procedure,

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of previous internet posts 5 and 6 and dated February 23, 2023, through the form enabled on the claimed website, as of the date of this report, these two found publications remain available and accessible without restrictions.

Given that it has not been possible to remove these two publications using known contact methods, an attempt was made to determine the responsible party for the website todo-memes.com through NAMECHEAP INC, the domain registrar, WITHHELD FOR PRIVACY EHF (ICELAND), the privacy protection entity used by NAMECHEAP INC, and META PLATFORMS IRELAND LIMITED, which has a profile for todo-memes.com on its social network Facebook, without success.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy in Data Processing

Including memes that use the image and name of the affected person, which identifies this individual, constitutes the processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the one subject to the complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data without any limitation who must demonstrate that they have that consent.

For this processing to be carried out lawfully, it must comply with the provisions of Article 6.1 of the GDPR, which states:

<<1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.>>

III

Conclusion

The complaint outlined the difficulty in contacting the service provider through the only seemingly available contact method, a form, with the aim of having their image and that of their brother removed from the website subject to the complaint.

Following the actions taken, the requested contents have been removed, satisfying the claims of the complainant. Additionally, four publications that were found during the current investigative proceedings were also removed. However, two similar contents found during these proceedings could not be removed.

To identify the person who disseminated the images and the conversation subject to the complaint, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

<<1. Before adopting the decision to initiate proceedings, and once the complaint has been accepted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when the investigation of processing involving a massive flow of personal data is necessary.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of...

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the communication that would have been sent to you by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

Efforts have been made using available means to determine the author of the publications and the responsible party for the website where these were published, without success.

Therefore, as it has not been possible to attribute responsibility for the processing, as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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